

Name(s) shown on your income tax return

Identifying number

545-58-2856

NATHANIEL S & CAMILLA C COOLIDGE

Section B - Appraisal Summary - List in this section only items (or groups of similar items) for which you claimed a deduction of more than \$5,000 per item or group. **Exception.** Report contributions of certain publicly traded securities only in Section A.

If you donated art, you may have to attach the complete appraisal. See the Note in Part I below.

Part I Information on Donated Property - To be completed by the taxpayer and/or appraiser.

4 Check type of property:

☐ Art* (contribution of \$20,000 or more)☒ Real Estate☐ Gems/Jewelry☐ Stamp Collections☐ Art* (contribution of less than \$20,000)☐ Coin Collections☐ Books☐ Other

*Art includes paintings, sculptures, watercolors, prints, drawings, ceramics, antique furniture, decorative arts, textiles, carpets, silver, rare manuscripts, historical memorabilia, and other similar objects.

Note: If your total art contribution deduction was \$20,000 or more, you must attach a complete copy of the signed appraisal.

5	(a) Description of donated property (if you need more space, attach a separate statement)	(b) If tangible property was donated, give a brief summary of the overall physical condition at the time of the gift	(c) Appraised fair market value
A	CONSERVATION RESTRICTION ON LAND		675,000.
B			
C			
D			

				See Instructions	
(d) Date acquired by donor (mo., yr.)	(e) How acquired by donor	(f) Donor's cost or adjusted basis	(g) For bargain sales, enter amount received	(h) Amount claimed as a deduction	(i) Average trading price of securities
A 10/66	PURCHASE	6,061.			
B					
C					
D					

Part II Taxpayer (Donor) Statement - List each item included in Part I above that is separately identified in the appraisal as having a value of \$500 or less.

I declare that the following item(s) included in Part I above has to the best of my knowledge and belief an appraised value of not more than \$500 (per item). Enter identifying letter from Part I and describe the specific item. ▶

Date ▶

Signature of taxpayer (donor) ▶

Part III Declaration of Appraiser

I declare that I am not the donor, the donee, a party to the transaction in which the donor acquired the property, employed by, or related to any of the foregoing persons, or married to any person who is related to any of the foregoing persons. And, if regularly used by the donor, donee, or party to the transaction, I performed the majority of my appraisals during my tax year for other persons. Also, I declare that I hold myself out to the public as an appraiser or perform appraisals on a regular basis; and that because of my qualifications as described in the appraisal, I am qualified to make appraisals of the type of property being valued. I certify that the appraisal fees were not based on a percentage of the appraised property value. Furthermore, I understand that a false or fraudulent overstatement of the property value as described in the qualified appraisal or this appraisal summary may subject me to the penalty under section 6701(a) (aiding and abetting the understatement of tax liability). I affirm that I have not been barred from presenting evidence or testimony by the Director of Practice.

Sign Here

Signature ▶

Title ▶ Sr. Project Mgr

Date of appraisal ▶ 12/21/95

Business address (including room or suite no.)

Identifying number 04-3129242

LandVest, Ten Post Office Square

City or town, state, and ZIP code

Boston, MA 02109

Part IV Donee Acknowledgment - To be completed by the charitable organization.

This charitable organization acknowledges that it is a qualified organization under section 170(c) and that it received the donated property as described in Section B, Part I, above on ▶ 11/25/95

(Date)

Furthermore, this organization affirms that in the event it sells, exchanges, or otherwise disposes of the property described in Section B, Part I (or any portion thereof) within 2 years after the date of receipt, it will file Form 8282, Donee Information Return, with the IRS and give the donor a copy of that form. This acknowledgment does not represent agreement with the claimed fair market value.

Name of charitable organization (donee)

Employer identification number

BTA/BOLT, INC

04-2649404

Address (number, street, and room or suite no.)

City or town, state, and ZIP code

20 CROSS ROAD

BOXFORD, MA 01921

Authorized signature

Title

Date

Harry R. Merrill

President

4-7-96

Greenbelt

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BK 11677 PG 122
12/29/92 01:18 Inst 294

CONSERVATION RESTRICTION

14.
28

The undersigned, NATHANIEL S. COOLIDGE, of Boxford, Essex County, Massachusetts, in consideration of one dollar (\$1.00) and other good and valuable consideration, hereby grants, without covenants, to ESSEX COUNTY GREENBELT ASSOCIATION, INC. a Massachusetts not-for-profit corporation having its principal office at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, a Conservation Restriction on two contiguous parcels of land being together the "Restriction Area", the first parcel being designated "Parcel A - Area B" containing 7.7264 acres more or less and the second parcel being designated Lot 1B containing 7,171 square feet more or less as shown on both the main survey and on the Key Map on a "Plan of Land in Boxford, MA Property of Nathaniel S. and Camilla Coolidge, 42 Topsfield Road, Boxford, MA" dated January 7, 1991 by Hancock Survey Associates, Inc. (the "Plan") recorded with Essex South Registry of Deeds Plan Book 272, as Plan 24.

Said Nathaniel S. Coolidge and his successors in title to the Restriction Area are hereinafter called the "Grantor" and Essex County Greenbelt Association, Inc. and its successors and assigns are hereinafter called the "Grantee".

WHEREAS, the Restriction Area contains and consists of open pastures, woods, vegetated wetlands, trails and farm roads, a barn, paddock and farm pond (designated "Still Pond", spring fed

on the Plan), all of which have been used as immediately adjacent land and facilities to a farm house presently situated on Lot 1A as shown on the Plan containing 2.0011 acres more or less (the "Houselot"), all of which has a history as a working farm extending back more than 300 years;

WHEREAS, the Restriction Area in conjunction with the Houselot comprise a pleasing vista of the central facilities and surrounding land of a typical historic New England farm, all of which is presently included within the Boxford Historic District and abuts in the rear over 100 acres of open and wooded land presently owned by the Grantor;

WHEREAS, the aforesaid 100 acres is part of an estimated 200 acres of contiguous, privately owned woodland bounded by Topsfield Road, Depot Road, Bare Hill Road and I-95 in Boxford with a well used trail network and also is part of one of the six original lots laid out when the Town of Boxford was settled in the 1640's.

WHEREAS, the Restriction Area being in an open, natural and largely undeveloped state is frequently used by others in conjunction with the use of a network of trails on adjoining and other properties by others for hiking, horseback riding, cross country skiing and the observation of wild animals and birdlife, particularly around the farm pond;

WHEREAS, the Restriction area contains and consists of upland forest, vegetated wetlands, open fields and trails and is

a distinctive Massachusetts landscape embodying the special character of the region in which it is located;

WHEREAS, the Restriction Area is adjacent to land of the Grantor under a perpetual conservation restriction held by the Essex County Greenbelt Association, thereby contributing to a corridor of protected open space in the area;

WHEREAS, a portion of the Restriction Area is located within a Conservancy District of the Town of Boxford;

WHEREAS, the 1988 Open Space and Recreation Plan of the Town of Boxford delineates the protection of existing trails for passive recreation as an objective of the Town and identifies conservation restrictions as one of the techniques by the Town to implement its open space objectives.

NOW, THEREFORE, in order to protect and preserve the Restriction Area in perpetuity for conservation purposes, and thereby provide significant scenic, aesthetic, scientific, educational and recreational values (collectively, the "conservation values") to the public generally, the Grantor hereby conveys to the Grantee a Conservation Restriction within the meaning of Chapter 184, Sections 31 through 33 of the General Laws of Massachusetts.

The terms of this Conservation Restriction are as follows:

1. Prohibited Activities. Except as otherwise herein provided, or expressly permitted by the Grantee in writing, the Grantor shall not conduct or carry out nor permit others to

conduct or carry out any of the following activities on the
Restriction Area:

- (a) Construction or placing of any buildings, mobile homes, roads, signs, billboards or other advertising, utility poles and wires or other structures (temporary or permanent) on or above the ground;
- (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, solid or chemical waste or unsightly or offensive materials or the installation of underground storage tanks;
- (c) Excavation, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits in such manner as to alter the surface topography of the Restriction Area;
- (d) Any development or other improvement for purposes of residential, commercial, industrial or institutional use;
- (e) Use of motorized vehicles of any nature or kind (including but not limited to cars, trucks, motorcycles, all-terrain vehicles and skimobiles), except such as may be necessary in the exercise of the Grantor's reserved rights or for property maintenance, security patrol or to fight fire;
- (f) Activities detrimental to flood control, water or soil conservation or erosion control; or

- (g) Other acts or uses which in the reasonable opinion of the Grantee are detrimental to preservation of the Restriction Area in an open and undeveloped condition.
- (h) Cutting, removal or destruction of trees, forbs, grasses, shrubs or other vegetation.
- (i) Any other use of the Restriction Area or activity which would impair the conservation values unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this restriction.

2. Reserved Rights. Notwithstanding anything contained in Paragraph 1 above, the Grantor reserves for himself and his successors in title the right to conduct or permit the following activities on the Restriction Area subject to all applicable laws then in effect:

- (a) Subject as hereinafter provided, the right to lay out, construct and use on the Restriction Area an access road to all land lying northerly and westerly of the Restriction Area which is now owned or may hereafter be acquired by the Grantor, (the "Grantor's Remaining Land"). Said access road may extend across the Restriction Area and all of the Grantor's Remaining Land shall have appurtenant rights therein to use the same for all purposes of access to and from Topsfield Road, including full rights of passage on foot and by vehicle and for the installation therein and thereover

of all utility services, such way to be of such width, grade and other characteristics and to be for such purposes as the Planning Board of the Town of Boxford may under present or future bylaws and regulations require as a condition to the approval of any subdivision which may hereafter be laid out on the Grantor's Remaining Land. In any action taken by the Grantor to lay out an access road over the Restriction Area, the Grantor agrees to take into account a similar reservation for the creation of an access road to the Grantor's Remaining Land was contained in a grant of Conservation Restriction covering contiguous land which was given by the Grantor to the Grantee by instrument dated April 7, 1991, recorded with said Deeds Book 11004, Page 223, it being the intention of the Grantor that there be only one such access road serving the Grantor's Remaining Land which may be located in part on the Restriction Area covered by the earlier grant and in part on the Restriction Area covered by this grant or entirely on either as the Grantor may determine. Before proceeding to lay out such access road, Grantor shall obtain Grantee's approval thereof which approval shall not be unreasonably withheld.

(b) The right to maintain, repair, restore and in the event of destruction from any cause, to rebuild the existing barn (shown as "wood barn" on the Plan), the pump house

(shown as "wood pump house" on the Plan), and any other structures and improvements such as farm and paddock fences, dams, culverts and bridges now on the Restriction Area subject to the prior approval of the Grantee, such approval not to be unreasonably withheld.

(c) The right to conduct or permit all forms of agriculture, silviculture, horticulture, and floriculture, as commonly construed, on a commercial basis or otherwise, including but not limited to the following:

- (i) the cultivation and harvesting of crops, flowers, berries, hay and other plant products and the production of compost materials in accordance with recognized natural resource conservation and farm management practices;
- (ii) the cultivation and harvesting of timber, firewood and other wood products in accordance with recognized natural resource conservation and forest management practices;
- (iii) the raising and grazing of livestock in accordance with recognized natural resource conservation and animal husbandry practices;
- (iv) hunting and trapping of wildlife; and
- (v) the making of non-structural improvements, including but not limited to the erection of

- fences and creation of open water ponds, in furtherance of the foregoing activities.
- (d) The maintenance of the Restriction Area including, without limitation, the planting, selective cutting and pruning and periodic mulching with organic matter of trees, shrubs, brush or other vegetation to improve the scenic view and to implement disease prevention measures, provided all such out vegetation shall be removed promptly from the Restriction Area;
- (e) The installation, maintenance, replacement and use of underground utilities, for the transmission of water, sewage, gas, telephone, electricity and other such utilities, provided that the area served by such utilities shall be limited to the Grantor's Remaining Land, and provided further that the surface of the Restriction Area shall so far as practicable be restored to the same condition that it was in prior to the disturbance thereof, and provided further that the Grantee be given prior notice of such installation;
- (f) Activities designed to enhance the ecological, scenic, or natural historical values of the Restriction Area, or to enhance the awareness of such values, including but not limited to the creation of footpaths, the placement of informative signs, benches, small shelters and the like; and

(g) Such other activities as are proposed by the Grantor and expressly approved by the Grantee as consistent with the purposes of the Conservation Restriction.

3. Access by Grantee. The Grantee through its duly designated officers, directors, members, employees or agents shall have the right to enter the Restriction Area at reasonable times and in a reasonable manner for the purpose of inspecting the Restriction Area, ensuring compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. Grantee hereby agrees to save Grantor harmless and to indemnify him from all injury, loss, claims, and damage to any person or property arising from the exercise by Grantee, or any person acting by, through or under Grantee, of any rights granted by this instrument, unless arising from any omission, fault, gross negligence or other misconduct of Grantor.

4. Use By Others. Except as provided in the foregoing paragraph, no rights to enter the Restriction Area are granted hereby to the Grantee, the public generally, or to any other person. Notwithstanding the above, the Grantor recognizes that certain trails located within the Restriction Area are presently used by other persons to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. Grantor hereby consents to the continuance of such activities, provided: (a) that any such activity shall be limited to daylight hours only; (b) that all such activities shall be confined within the limits of

established trails; (c) that no motor vehicles of any kind shall be permitted; (d) that no camping, hunting, trapping or discharge of firearms shall be conducted; (e) that no dumping, waste disposal or littering of any kind be allowed; (f) that the picking of flowers, gathering of wood or any other disturbance of the natural order is strictly prohibited; and (g) that no activity of a commercial nature shall be allowed. The Grantor hereby reserves the right (i) to periodically post the Restriction Area against entry and take such other measures as are necessary and appropriate to prevent the ripening of prescriptive rights in the Restriction Area, (ii) to alter the location of existing trails within the Restriction Area, provided that as so relocated, access to and passage through the Restriction Area is not substantially impaired, and (iii) to formally establish trails for foot and horse travel across the Restriction Area in collaboration with Boxford Trail Association in its program to lay out a network of recreational trails throughout the Town. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Restriction Area or warn persons who may enter upon the same.

5. Assignment by Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a governmental unit as defined in Section 170(c)(1) of the Internal Revenue Code or to a "qualified organization" as defined in Section 170 (h)

(3) of the Internal Revenue Code provided that, as a condition of such assignment, the assignee is capable and committed to hold this Conservation Restriction and to enforce its terms for conservation purposes. In the event Grantee elects to so assign this instrument, Grantee shall first offer to make such assignment to the Conservation Commission of the Town of Boxford.

6. Representations of Grantor and Grantee. Grantor represents that he is the sole owner of the Restriction Area and that there are no prior easements, reservations, restrictions, mortgages or other encumbrances or record affecting the same. Grantee represents that it is a not-for-profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it qualifies as a "Qualified Organization" as that term is defined in Section 170(h)(3) of the Internal Revenue Code of 1954, as amended.

7. Required Notifications. Grantor shall notify Grantee in writing at least thirty (30) days before conveying the Restriction Area, or any part thereof or any interest therein (including a lease) and before exercising any right reserved to him hereunder which may adversely affect the conservation interests associated with the grant of this Conservation

Restriction. The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction.

Whenever notice to or approval by the Grantee is required under the provisions of paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than sixty (60) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall respond in writing within sixty (60) days of receipt of the Grantor's written request therefor.

8. Eminent Domain. In the event that all or any portion of the Restriction Area is taken by eminent domain or judicial proceedings in the nature of eminent domain so as to extinguish the restrictions imposed hereunder, the Grantor and Grantee shall fully cooperate in such proceedings to recover the full value of the interests taken and all incidental or direct damages resulting from the taking. All expenses incurred by the Grantor and the Grantee in such action shall be paid out of the recovered proceeds. The remaining recovered proceeds (including, for purposes hereof, proceeds from any lawful sale of the property unencumbered by the restrictions hereunder) shall be distributed to the Grantor and the Grantee in shares proportional to the fair